

Framework Contract (N°: [CONTRACT REFERENCE NUMBER]) for purchasing goods and services (standard)

This Framework Contract is entered into between:

[DPDHL LEGAL ENTITY] (Registered No. [REGISTRATION NUMBER]) of [REGISTERED OFFICE ADDRESS], referred to as 'DPDHL'.

and

[SUPPLIER LEGAL NAME] (Registered No. [REGISTRATION NUMBER]) of [SUPPLIER'S ADDRESS], referred to as 'the Supplier'

and sets out the joint understanding of the basis upon which DPDHL will order and the Supplier will provide [DESCRIPTION OF GOODS AND/OR SERVICES].

1. AGREEMENT TO PURCHASE

- 1.1 This Framework Contract, the DPDHL Purchase Order Terms and Conditions (attached as Appendix 1) and any other document and appendix incorporated into them, shall form the complete contract between DPDHL and the Supplier (the "Contract").
- 1.2 The raising of a Purchase Order constitutes an acceptance by DPDHL to purchase the Goods and/or the Services subject to the terms of the Contract.
- 1.3 Any terms and conditions that the Supplier seeks to impose or incorporate, or which are implied by law, trade custom, practice or course of dealing, shall not form part of the Contract.

2. GROUP CLAUSE WITH RIGHT OF REQUEST

Subject to capacity and on request, the Supplier shall supply the Goods and/or Services on the terms and conditions set out in this Framework Contract to other DPDHL Entities in [COUNTRY]. The DPDHL entity placing a Purchase Order will be solely responsible for its obligations, such as payment, in connection with that Purchase Order. DPDHL shall have no liability for the acts and omissions of any other DPDHL Entity.

3. PERIOD OF THE FRAMEWORK CONTRACT

This Framework Contract shall be effective from [DATE] and shall remain in force until [DATE] subject to any express rights of earlier termination contained in this Contract (the "Initial Period"). After the Initial Period, this Framework Contract may be extended by mutual written agreement.

4. SPECIFICATION OF GOODS AND SERVICES

- 4.1 The Supplier undertakes to supply Goods and/or Services strictly in accordance with the Purchase Order, or the Specifications and Service Levels detailed in Appendix 3, as applicable, to the relevant DPDHL site(s) as advised from time to time.
- 4.2 Where requested by DPDHL, the Supplier undertakes to supply Goods and/or Services via DPDHL's third party catalog hosting provider for the agreed purchasing systems, at no additional cost to Supplier. DPDHL will provide further documentation summarizing the catalog related requirements.

In this case the following requirements will apply:

- 4.2.1 Supplier will upload the correct content, images and prices as agreed into the catalog hosting system within fifteen (15) days from the signature of this Contract.
- 4.2.2 Upon DPDHL's request the Supplier will compile reports regarding the following information or will provide a web interface enabling DPDHL to generate reports itself:
- Date of Purchase Order
 - Value of Purchase Order
 - Currency of Purchase Order
 - Product Description
 - UNSPSC
 - Country of Delivery
 - Purchase Order Number, PO Status
 - Delivery Address, Legal Entity
 - Producer / Manufacturer
 - Product Number of the Producer / Reseller
 - Date ordered, date shipped, date delivered, delivery time (in days)
 - Product unit price, transport charge, Customs/VAT charge, invoicing currency
 - Volume
 - Delivery Partner (if more DPDHL Entities)
- 4.2.3 The agreed reports will be provided free of charge, no later than fourteen (14) days after the request and detailing the orders of at least the previous twelve (12) months.
- 4.3 DPDHL reserves the right to review the Specifications at any time. In the event that such a review results in a change in prices then this will be discussed and agreed in writing between the Supplier and DPDHL. In the event of failure to agree upon revised prices DPDHL may either continue with the existing Specification under the same terms and conditions (including without limitation the prices set out in Appendix 4) or terminate either the whole or any part of the Framework Contract, without penalty by giving not less than thirty (30) days' prior notice in writing to the Supplier.
- 4.4 The Contract does not confer a right to provide services and/or sell products and does not constitute an obligation on the part of DPDHL to accept services and/or purchase goods. This Contract does not give the Supplier exclusivity and DPDHL shall be entitled to obtain the stated services and/or goods from a third party. DPDHL does not guarantee any purchase volume nor does the Contract obligate DPDHL to purchase or pay for any minimum volumes.

5. PRICES

- 5.1 Goods and/or Services will be supplied at the prices specified in Appendix 4.
- 5.2 The prices shall be fixed and all-inclusive. The stated prices shall cover all costs incurred until the Contract is fulfilled (e.g. packaging, transport, insurance, customs clearance, installation, all duties and taxes, travel and accommodation costs and office/administrative costs) and any and all charges in relation to the Goods and/or Services. Prices will be exclusive of VAT unless otherwise stated in the Contract. No additional amounts shall be payable by DPDHL unless specifically agreed in writing by a duly authorized representative of DPDHL.
- 5.3 The price shall remain firm for the period of the Contract. The Supplier is not permitted to apply any escalation or increase in price or any other charges without the prior written consent of DPDHL.
- 5.4 The Supplier will ensure that the prices remain competitive with suppliers of like Goods and/or Services and shall allow and co-operate with DPDHL in conducting reasonable benchmarking exercises.

6. PAYMENT TERMS

- 6.1 The Supplier shall submit all invoices to DPDHL in accordance with the invoice processes detailed in Appendix 5. Invoices will be paid according to the payment terms set forth in this article 6 and Appendix 5.
- 6.2 Payment of correct invoices is due in the relevant currency as defined in DPDHL's Purchase Order 60 days from the receipt of the correct invoice by DPDHL, subject to satisfactory receipt of Goods and/or Services.

7. PRECEDENCE

The Contract shall consist of the following documents. In case of any conflict between any of them, the following order of precedence shall prevail to the extent of the conflict:

This Framework Contract
Purchase Order
Appendix 1 - DPDHL Purchase Order Terms and Conditions
Appendix 2 - DPDHL Supplier Code of Conduct (SCoC)
Appendix 3 - Specifications and Service Levels
Appendix 4 - Prices
Appendix 5 - Invoice procedure/ Payment terms

8. OTHER

- 8.1. Words and expressions defined in the DPDHL Purchase Order Terms and Conditions shall have the same meaning in this Framework Agreement (unless stated otherwise).
- 8.2. The Supplier shall comply with the DPDHL Supplier Code of Conduct in Appendix 2 and, where applicable, the DPDHL Guidelines and Policies set out in Appendix 7.
- 8.3. Each Party expressly agrees to the use and acceptance of electronic signatures whether digital or encrypted and that the electronic signature of a Party shall have same force and effect as a manual signature. A signed copy of this Contract delivered by email or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Contract.
- 8.4. **Environmental, Social and Governance (ESG) Assessments.** *In order to comply with DPDHL's environmental, social and governance standards, during the term of this Contract the Supplier shall participate in DPDHL's ESG Assessment Programme, which is a mechanism to determine the maturity*

level of suppliers in terms of their environmental, social and governance practices. Consequently, the Supplier shall complete the requirements of an ESG Assessment Programme recognized by DPDHL within 6 months of Contract signature, unless the Supplier already participates in an ESG Assessment Programme recognised by DPDHL.

The timing of further assessments (6, 12 or 36 months) to be undertaken by the Supplier, whether in a recognised DPDHL ESG Assessment Programme or otherwise, is determined by the most recent assessment rating.

Depending on the final rating, after each assessment, a corrective action plan may be required. The Supplier and DPDHL shall work together without undue delay to agree the content of the corrective action plan, the actions required to implement the corrective action plan and the timeframes for implementation. The Supplier shall provide regular reports to DPDHL on its progress in implementing the corrective action plan.

Compliance with this clause 8.4 (i) is mandatory and a material contractual obligation; and (ii) will not involve any additional costs for DPDHL.

- 8.5. **Integrity.** Each party shall implement all necessary measures to preclude breach of competition and cartel Law. Irrespective of the form of participation (perpetration and participation), for the purpose of this clause breach includes any infringement of provisions designed to protect, unimpeded competition, including exchange of competitively sensitive information, collusive agreements on prices or price elements, profit surcharges, prohibited price, recommendations, involvement in recommendations or collusive agreements regarding the submission or non-submission of bids, the payment of deficiency compensation payments or indemnity payments, and any profit sharing and payments to competitors, terms of payment, delivery or any other conditions directly affecting prices or any other violation of the hardcore restrictions (being agreements on price, submissions, quantity, quotas, territories or customers) (each of the aforementioned infringements an “Illegal Restraint of Competition”).

If the Supplier, an Affiliate of Supplier or one of their respective representatives, officers or employees has been proven to have committed an Illegal Restraint of Competition in connection with the procurement process relating to the entry into this Agreement or unconnected to the procurement process but relating to the relevant market for any of the contractual supplies and / or services the Supplier shall pay to DPDHL on demand the sum equal to 15% of the contract value of the contractual supplies and / or services procured from Supplier and its Affiliates by DPDHL and its Affiliates during the Illegal Restraint of Competition as liquidated damages. This does not apply if neither the Supplier nor any Affiliate of the Supplier is responsible for the violation. The amount of the liquidated damages shall be without prejudice to either party’s right to prove that no damages or damages of different value occurred, and shall be without prejudice to DPDHL’s other rights and remedies arising under this Agreement, existing at law or in equity or otherwise. Any payment made by Supplier pursuant to this clause shall be deducted from respective claims Affiliates of the DPDHL might have, if any.

If the Supplier, an Affiliate of the Supplier or one of their respective representatives, officers or employees has been proven to have committed an Illegal Restraint of Competition the Supplier has to hand over to DPDHL copies of any communication to competition authorities, including annexes, regarding markets affected by the Illegal Restraint of Competition, in particular any leniency applications and settlement agreements, each including annexes, to the extent permissible under applicable public law. All such documents must be provided to DPDHL without undue delay, and at the latest within four weeks following the final and binding completion of an antitrust proceeding of the respective competition authority or the final and binding ruling of a court in subsequent judicial proceedings appealing the respective competition authority’s decision.

DPDHL shall be entitled to terminate the contractual relationship for cause without notice if the Supplier, a company affiliated with the Supplier, or one of their respective representatives, officers or employees commits an Illegal Restraint of Competition as defined in this Integrity Clause.

The terms of this Section shall survive the termination or expiry of this Contract (and any Orders, if applicable) for any reason, and shall be without prejudice to DPDHL’s other rights and remedies arising under this Contract, existing at law or in equity or otherwise.

THIS FRAMEWORK CONTRACT has been executed by or on behalf of the parties on the date stated on the front page.

[DPDHL ENTITY NAME]	
[Address]	
Signature: (duly authorised signatory)	
Name (In Capitals):	
Job Title:	
Date:	
Procurement/Co-Signature: (duly authorised signatory or, in case of Procurement, reviewed and approved for execution)	
Name (In Capitals):	
Job Title:	
Date:	

[SUPPLIER ENTITY NAME]	
[Address]	
Signature: (duly authorised signatory)	
Name (In Capitals):	
Job Title:	
Date:	

APPENDIX 1

DPDHL PURCHASE ORDER TERMS AND CONDITIONS

DPDHL Purchase Order Terms and Conditions documentation is annexed to this framework agreement document.

APPENDIX 2

DPDHL SUPPLIER CODE OF CONDUCT (SCOC)

DPDHL Supplier Code of Conduct (SCoC) documentation is annexed to this framework agreement document.

APPENDIX 3

SPECIFICATIONS AND SERVICE LEVELS

APPENDIX 4

PRICES

The [product/service] are defined but not limited to the Appendix 4. DPDHL may request for other goods and/or services within [category] from the Supplier which will be followed by a request for quote.

Pricing for [product/service] is defined as per follows.

APPENDIX 5

INVOICE PROCEDURE/PAYMENT TERMS

The invoicing process is annexed to this contract document.

APPENDIX 6

INFORMATION SECURITY CODE OF PRACTICE

The Information Security Code Of Practice is annexed to this contract document.